

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on April 22, September 16 and September 30, 2026, and any and all subsequently filed discovery motions. The hearing calendared for these discovery motions are vacated from Department 16's calendar and are referred for further hearing to the Discovery Referee.
2. By no later than May 1, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee, the Parties each shall submit the name of **one** proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Monday, May 4, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split equally between the parties filing and opposing any discovery motion. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment, along with a copy of this order.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for April 22, September 16 and September 30, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

10. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
HEARING IN RE: JOINDER TO MOTION TO COMPEL ARBITRATION
FILED BY: HERNANDEZ, GILBERTO

TENTATIVE RULING:

Summary

This tentative ruling is related to the hearing on Defendant United Parcel Service, Inc's Motion to Compel Arbitration, Line 11.

Individual Defendants Gilberto Hernandez, Eric Hosier, Nicholas Resendes, and Rodney Humphreys's filed a Motion to Join to Defendant United Parcel Incorporated's Motion to Compel Arbitration on November 12, 2025. Plaintiffs Billy Evers, Darien Robinson, and Tracy Turner filed a statement of non-opposition to the joinder on March 6, 2026. As the joinder is not opposed, it is therefore **granted**.

11. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: UNITED PARCEL SERVICE, INC.

TENTATIVE RULING:

Before the Court is a motion by defendant United Parcel Service, Inc. to compel arbitration as to plaintiff Tracy Turner, in which individual defendants Gilberto Hernandez, Eric Hosier, Nicholas Rezendes, and Rodney Humphreys have joined (*see* Line 10). For the reasons set forth, the motion to compel arbitration as to plaintiff Tracy Turner, in which the individual defendants join, is **denied**.

Background

This action is filed by plaintiffs Billy Evers, Darien Robinson, and Tracy Turner against United Parcel Service, Inc. ("UPS") and four individual defendants, Gilberto Hernandez, Eric Hosier, Nicholas Rezendes, and Rodney Humphreys, employed by UPS. Plaintiffs allege causes of action for harassment, employment discrimination, retaliation, and failure to prevent harassment, discrimination, and retaliation.

The complaint was filed on June 20, 2024. The complaint was served on UPS on July 8, 2024. UPS filed an answer to the complaint on August 6, 2024. UPS was represented by the firm Jones Day until its current counsel, Seyfarth Shaw LLP, filed a substitution of counsel on June 10, 2025.

A case management conference was held on September 19, 2025. UPS filed an amended CMC statement on September 16, 2025 in which it stated, admittedly for the first time in a filed pleading, that it had discovered that plaintiff Tracy Turner had signed an arbitration agreement with UPS dated June 3, 2022 and that UPS intended to file a motion to compel Mr. Turner to arbitrate his claims by September 26, 2025. A notice of ruling on the September 19, 2025 CMC further indicates the parties agreed at the hearing that Mr. Turner would not assert that UPS waived its right to compel arbitration by UPS participating in discovery after the motion to compel arbitration was filed. (Meer Decl. Exh. I